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|   |                                                                               | and serve a supplemental memorandum of remaining issues, no later than 9 court days before the continued hearing date and not to exceed ten pages, including: (1) attaching a copy of Defendant's supplemental responses, if any; and (2) a concise description of any remaining dispute including identification of the specific interrogatories which remain in dispute. Defendant may file a responsive supplemental memorandum, not to exceed ten pages, addressing the disputed issues, no later than 5 court days before the continued hearing date.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 7 | <b>25-01527585</b><br><br><b>Champion Tobacco Corporation vs. JTL Lux LLC</b> | <p><b>Motion to Quash Service of Summons</b></p> <p>Defendants' Motion to Quash Service of Summons and Complaint is GRANTED.</p> <p>Defendants JTL Lux, LLC; David Hsu; and Tina Lim specially appear and move under Code Civil Procedure section 418.10 for an order quashing service of summons and complaint for lack of personal jurisdiction.</p> <p>Section 418.10, subdivision (a)(1) provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." Once a defendant files a motion to quash challenging jurisdiction, the burden is on the plaintiff to demonstrate by a preponderance of the evidence sufficient minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction. (<i>Mihlon v. Superior Court</i> (1985) 169 Cal.App.3d 703, 710; <i>Ziller Electronics Lab GmbH v. Superior Court</i> (1988) 206 Cal.App.3d 1222, 1232.) The evidence must be competent; unverified pleadings are insufficient (<i>Mihlon v. Superior Court, supra</i> at p. 710), as are hearsay declarations (<i>Floveyor Int'l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 796).</p> <p>California has the broadest kind of "long arm" statute, allowing California courts to "exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) Due process allows a state court to exercise personal jurisdiction over a nonresident defendant who has "minimum contacts" with the forum state: a relationship between the nonresident and the forum state which is such that the exercise of jurisdiction does not offend "traditional notions of fair play and substantial justice." (<i>International Shoe Co. v. Washington</i> (1945) 326 U.S. 310, 316.)</p> <p>Such personal jurisdiction may be general or specific. General jurisdiction arises when a defendant maintains "continuous and systematic" contacts with the forum state even when the cause of action has no relation to those contacts. (<i>Helicopteros Nacionales de Colombia, S.A. v. Hall</i> (1984) 466 U.S. 408, 415.) Even where general jurisdiction does not exist, a nonresident defendant may still be subject to specific jurisdiction if the controversy is related to or arises out of the defendant's contacts with the forum state. (<i>Ibid.</i>) Courts use a 3-part test to determine whether specific jurisdiction exists: (1) "defendant has purposefully availed himself or herself of forum benefits;" (2) "the controversy is related to or 'arises out of' a defendant's contacts with the</p> |

forum;” and (3) “[o]nce it has been decided that a defendant purposefully established minimum contacts within the forum State, these contacts may be considered in light of other factors to determine whether the assertion of personal jurisdiction would comport with ‘fair play and substantial justice.’” (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 446-447 [cleaned up].)

Here, Plaintiffs concede that general jurisdiction does not apply since their opposition is silent on this point. Instead, Plaintiffs argue specific jurisdiction exists based on the commercial transaction between the parties.

“Purposeful availment exists whenever the defendant purposefully and voluntarily directs its activities toward the forum state in an effort to obtain a benefit from that state.” (*Snowney v. Harrah’s Entertainment, Inc.* (2002) 35 Cal.4th 1054, 1067.) Whether the controversy “is related to or arises out of defendants’ contacts with California” is satisfied if there is a substantial nexus or connection between the defendants’ forum activities and the plaintiff’s claim.” (*Id.* at p. 1068.)

An individual’s contract with a nonresident *alone* does not automatically establish sufficient minimum contacts in the other party’s home forum. (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 478.) Rather, courts must consider the following factors: (1) prior negotiations; (2) contemplated future consequences; (3) terms of the contract; and (4) the parties’ actual course of dealings. (*Id.* at p. 479.)

Here, the evidence provided by both parties establishes plaintiff Champion Tobacco Corporation conducts business from California. Plaintiffs Detian Fang and Bihua Fang are California residents and principals of Champion. Defendant JTL Lux, LLC is a Texas limited liability company, and defendants David Hsu and Tina Lim are Texas residents who do not reside, do business, own property or maintain offices in California. In March 2024, plaintiff Fang communicated with Defendants regarding the purchase of acetate tow for Champion’s manufacturing operations. Defendant JTL Lux sent Plaintiffs a sample of the product and made representations about the product. On or about 3/15/24, the parties entered into a contract for the sale of \$205,200 worth of acetate tow, delivery to be arranged by Defendants to Cambodia. The negotiations and execution of the contract occurred remotely while Plaintiffs were in California and Defendants were in Texas.

An isolated transaction such as this does not establish specific jurisdiction. (See *Shisler v. Sanfer Sports Cars, Inc.* (2006) 146 Cal.App.4th 1254, 1258; *Luberski, Inc. v. Oleificio F.LLI Amato S.R.L.* (2009) 171 Cal.App.4th 409, 419.) Here, there is no evidence that Defendants directly advertised in California, intentionally targeted any California resident as potential buyers, or initiated the transaction with Plaintiffs; Defendants had no responsibility to deliver the goods to California but instead internationally to Cambodia; and Defendants had no further contact (besides the lawsuit) with Plaintiffs following the

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|           |                                                                                                   | <p>delivery of the goods to Cambodia. Merely negotiating remotely with Plaintiffs for a single sale of goods to be delivered to Cambodia does not establish Defendants purposefully availed themselves of the benefits of California.</p> <p>The motion is granted.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>8</b>  | <b>24-01397104</b><br><br><b><i>Doyle vs. Waldorf Astoria Monarch Beach &amp; Resort Club</i></b> | <b>Motion for Summary Judgment and/or Adjudication</b><br><br><b>OFF CALENDAR</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>12</b> | <b>24-01408634</b><br><br><b><i>Gallegos vs. Kobus</i></b>                                        | <b>Motion to Be Relieved as Counsel of Record</b><br><br><p>Counsel Theodore Hankin’s Motion to Be Relieved as Counsel is MOOT.</p> <p>Plaintiff Mark Gallegos and Hankin filed a substitution of attorney on 4/21/26 indicating that Hankin was being substituted out as counsel and Gallegos was representing himself.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>15</b> | <b>22-01292736</b><br><br><b><i>Martin vs. The Stag Bar, Inc.</i></b>                             | <b>Motion for Summary Judgment and/or Adjudication</b><br><br><p>Defendant The Stag Bar, Inc.’s Motion for Summary Judgment is MOOT.</p> <p>This Court previously entered an order issuing terminating sanctions against Plaintiff. (ROA 372.) Thus, Defendant’s motion for summary judgment is moot.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>16</b> | <b>22-01269208</b><br><br><b><i>Moran vs. Torelli Realcorp</i></b>                                | <ol style="list-style-type: none"> <li><b>1) Demurrer to Complaint</b></li> <li><b>2) Motion to Compel Further Responses to Form Interrogatories</b></li> <li><b>3) Motion to Compel Response to Requests for Admissions</b></li> <li><b>4) Motion to Strike Portions Of Complaint</b></li> </ol> <p><b><u>Demurrer</u></b></p> <p>Defendant Michael Meyer’s Demurrer to the Frist Amended Complaint (FAC) is OVERRULED. Defendant is to file an answer within 20 days of this ruling.</p> <p><b><u>1st Cause of Action – Disgorgement of Profits</u></b></p> <p>“Except as provided in subdivision (e), a person who utilizes the services of an unlicensed contractor may bring an action in any court of competent jurisdiction in this state to recover all compensation paid to the unlicensed contractor for performance of any act or contract.”</p> <p>Plaintiff has sufficiently alleged a claim for disgorgement of profits under Business and Professions Code section 7031(b). Plaintiff alleges he paid Defendant for contracting work, which Defendant was unlicensed to perform. (FAC, ¶¶ 19-23.)</p> <p>Although the statute of limitations is 1 year, Defendant does not explain how the claim is untimely under the allegations of the FAC. (See <i>San</i></p> |